

NON-DISCLOSURE AGREEMENT

1. DEFINITIONS

1.1 Confidential Information. "Confidential Information" means all non-public, confidential or proprietary information disclosed by one party to the other party, whether orally or in writing.

1.1.1 Exclusions. Confidential Information shall not include information that: (a) is now or subsequently becomes generally available to the public; (b) the Receiving Party can demonstrate was rightfully in its possession prior to disclosure.

2. OBLIGATIONS

2.1 Non-Use and Non-Disclosure. The Receiving Party shall not use the Confidential Information for any purpose other than evaluating a potential business relationship.

2.2 Standard of Care. The Receiving Party shall protect the Confidential Information by using the same degree of care, but no less than a reasonable degree of care, to prevent the unauthorized use or disclosure specific information.